

LAW OFFICES OF MARTINEZ & ASSOCIATES

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March 18, 2024

VIA CERTIFIED MAIL — RETURN RECEIPT REQUESTED

National Casualty Insurance Co. Attn: Claims Supervisor — Liability Division 8500 Corporate Center Blvd.
Chicago, IL 60611

RE: Demand for Settlement Claimant: Margaret Wilson **Date of Loss:** September 12, 2023 **Claim Number:** 2023-LC-08841 **Insured:** Lakeside Property Management, LLC **Policy Number:** CGL-2023-55010 **Our File:** MAF-2023-0477

Dear Claims Supervisor,

This firm represents Margaret Wilson in connection with injuries she sustained on September 12, 2023 at the Lakeside Apartments property owned and managed by your insured, Lakeside Property Management, LLC. We write to demand settlement of this claim.

I. LIABILITY

On September 12, 2023, Mrs. Wilson was visiting her daughter at Lakeside Apartments, Building C. While descending the exterior staircase, Mrs. Wilson grasped the handrailing for support. The railing detached from the wall at the upper anchor point, causing Mrs. Wilson to fall approximately eight (8) feet to the concrete landing below.

Your insured had actual notice of the dangerous condition of this railing. Two (2) written maintenance requests were submitted by tenants prior to the incident:

1. **August 4, 2023** — Maintenance Request #MR-2023-1104 filed by tenant Jennifer Blake, reporting a loose railing with corroded anchor bolts.
2. **August 28, 2023** — Maintenance Request #MR-2023-1189 filed by tenant Richard Hayes, stating the railing was "visibly detached at the top anchor point" and warning "someone is going to get hurt."

Your insured acknowledged both requests but deferred action to a "Q4 exterior maintenance batch" with an estimated completion date in November 2023 — two months after the incident.

On September 20, 2023, Springfield Code Enforcement inspected the staircase and issued Citation #CE-2023-0944 for multiple building code violations, including anchor bolt failure, non-compliant railing height (32 inches versus the code-required minimum of 34 inches), and missing anti-slip treads on three steps.

The liability of your insured is clear. Lakeside Property Management had actual and constructive notice of a dangerous condition, failed to repair it within a reasonable time, failed to warn visitors of the hazard, and violated applicable building codes.

Your insured's December 8, 2023 denial letter argued that Mrs. Wilson was comparatively negligent for not using the interior staircase. We reject this defense. The exterior staircase was a common area maintained by your insured and intended for regular use by tenants and visitors. Mrs. Wilson had no reason to believe the railing was defective, and she had every right to rely on it for support.

II. INJURIES AND TREATMENT

A. Acute Injury

Mrs. Wilson sustained a **displaced right femoral neck fracture (Garden Grade III)**. She was transported by ambulance to Springfield General Hospital, where X-ray and CT imaging confirmed the fracture.

B. Surgical Treatment

On September 13, 2023, Mrs. Wilson underwent **right total hip arthroplasty** (total hip replacement surgery) performed by Dr. Patricia Reeves, MD. The surgery lasted 2 hours and 15 minutes under general anesthesia. Cementless acetabular and femoral components were implanted.

C. Hospitalization

Mrs. Wilson remained hospitalized at Springfield General Hospital for six (6) days (September 12-18, 2023). Her post-operative course included pain management, DVT prophylaxis, and physical therapy initiation.

D. Inpatient Rehabilitation

Mrs. Wilson was transferred to Springfield Rehabilitation Center on September 18, 2023, where she received daily physical therapy and occupational therapy for twenty-eight (28) days until discharge on October 16, 2023.

At admission, she required moderate assistance for mobility and self-care. At discharge, she was modified independent with all activities using adaptive equipment.

E. Outpatient Physical Therapy

Mrs. Wilson completed twelve (12) sessions of outpatient physical therapy between November 6 and December 18, 2023. At discharge from therapy, she was ambulating without assistive device for short distances and had returned to a low-impact exercise program.

F. Psychological Injury

Mrs. Wilson developed clinically significant anxiety following the fall. On March 11, 2024, Dr. Alan Foster, PhD diagnosed **Adjustment Disorder with Anxiety** directly related to the September 12, 2023 incident. Mrs. Wilson experiences persistent fear of falling, avoidance of stairs and unfamiliar buildings, hypervigilance, sleep disturbance, and reduced social participation. A course of 12 sessions of cognitive behavioral therapy has been recommended.

III. DAMAGES

A. Past Medical Expenses

Provider	Service	Amount
Springfield General Hospital	Emergency Department	\$8,450.00
Springfield General Hospital	Surgical Services	\$42,300.00
Springfield General Hospital	Room & Board (6 days)	\$28,800.00
Springfield General Hospital	Radiology	\$5,800.00
Dr. Lisa Huang	Anesthesiology	\$6,200.00
Springfield Rehabilitation Center	Inpatient Rehab (28 days)	\$38,500.00
Springfield Rehabilitation Center	Outpatient PT (12 sessions)	\$3,600.00
Dr. Patricia Reeves	Follow-up visits (3)	\$1,350.00
Dr. Maria Gonzalez	Primary care visit	\$280.00
Dr. Alan Foster	Behavioral health consult	\$320.00
Various Pharmacies	Medications	\$1,250.00
ABC Medical Supply	Durable Medical Equipment	\$650.00
Total Past Medical		\$137,500.00

B. Future Medical Expenses (Life Care Plan Estimate)

Item	Estimated Cost
Cognitive behavioral therapy (12 sessions)	\$3,840.00
Annual orthopedic follow-up (10 years)	\$4,500.00
Hip revision surgery (projected 15-20 years)	\$65,000.00
Future physical therapy as needed	\$5,000.00
Total Future Medical	\$78,340.00

C. Lost Wages

Mrs. Wilson is a retired schoolteacher who supplements her pension with part-time tutoring income. She was unable to perform any tutoring work for six (6) months following the injury.

Category	Amount
Lost tutoring income (6 months)	\$18,000.00
Loss of household services (3 months)	\$4,500.00
Transportation to medical appointments	\$1,200.00
Total Economic Loss (Non-Medical)	\$23,700.00

D. Summary of Economic Damages

Category	Amount
Past Medical Expenses	\$137,500.00
Future Medical Expenses	\$78,340.00
Lost Wages and Other Economic Loss	\$23,700.00
Total Economic Damages	\$239,540.00

E. Non-Economic Damages

Mrs. Wilson, age 62, has endured:

- Severe acute pain from the fracture and surgery
- Extended hospitalization and institutional rehabilitation (34 days total)
- Loss of independence during recovery
- Permanent surgical hardware in her body
- Need for future revision surgery
- Clinically diagnosed anxiety disorder affecting her daily activities
- Avoidance of stairs, unfamiliar buildings, and social events
- Sleep disturbance and recurring nightmares
- Loss of confidence and enjoyment of life
- Fear that the hip prosthesis may fail

Given the severity and permanence of Mrs. Wilson's injuries, the clear liability of your insured, and the impact on her quality of life, we assert that non-economic damages are valued at no less than **\$350,000.00**.

IV. TOTAL DEMAND

Category	Amount
Total Economic Damages	\$239,540.00
Non-Economic Damages	\$350,000.00
Total Demand	\$589,540.00

V. SETTLEMENT TERMS

We demand payment of **Five Hundred Eighty-Nine Thousand Five Hundred Forty Dollars (\$589,540.00)** in full settlement of all claims arising from this incident.

This demand is open for **thirty (30) days** from the date of this letter. If settlement is not reached within this period, we are prepared to file a civil complaint in Sangamon County Circuit Court.

We are confident that a jury presented with the evidence of your insured's actual notice of the dangerous condition, the two ignored maintenance requests, the building code violations, and the severity of Mrs. Wilson's injuries will return a verdict well in excess of our demand.

Please direct all settlement communications to this office.

Sincerely,

Carlos Martinez, Esq. Attorney at Law Martinez & Associates

Enclosures:

1. Medical records — Springfield General Hospital
2. Medical records — Springfield Rehabilitation Center
3. Medical records — Outpatient Physical Therapy
4. Medical records — Dr. Maria Gonzalez
5. Clinical evaluation — Dr. Alan Foster, PhD
6. Springfield Code Enforcement Citation #CE-2023-0944
7. Maintenance request records (Lakeside Property Management)
8. Photograph exhibits (12 images)
9. Itemized medical billing summaries

cc: Margaret Wilson (client copy)